



SERVICE AGREEMENT

Parties

This Service Agreement is made between

Richard MCLEAN (AKA: Barran DODGER),

a participant in the National Disability Insurance Scheme (NDIS), or their duly authorised representative,

and

Ablepoint Australia

The Provider.

The purpose of this Agreement is to set out the terms, conditions, rights, and obligations under which the Provider will deliver supports and services to the Participant. This Agreement has been designed to ensure clarity, accountability, and transparency between both parties, and to provide a framework for delivering services that are safe, lawful, and aligned with the Participant's NDIS Plan.

The Agreement will commence **on 02/03/2026** and will remain in force **until 01/03/2027** unless reviewed, amended, or terminated under the provisions contained within this agreement.

The NDIS and this Service Agreement

This Agreement is entered into within the legislative framework of the National Disability Insurance Scheme Act 2013 and associated Rules and Standards. It acknowledges that the NDIS is a national scheme designed to provide reasonable and necessary supports to people with disability, to promote independence, enable choice and control, and encourage full participation in society.

Both the Participant and the Provider accept that this Agreement operates in the context of the NDIS Quality and Safeguards Commission, which regulates providers and enforces compliance with standards of safety, quality, and accountability.

The parties confirm that supports delivered under this Agreement will be consistent with the Participant's approved NDIS Plan, will be in line with the principle of reasonable and necessary supports, and will always be directed towards achieving the Participant's personal goals, objectives, and aspirations.

Schedule of Supports

The services to be provided under this Agreement are set out in the Schedule of Supports attached to this document. This schedule will clearly describe each support, the method of delivery, the staff responsible, the location and duration of services, and the cost of each item. All costs will align with the NDIS Pricing Arrangements in effect at the time of service delivery and will be inclusive of Goods and Services Tax (GST) where applicable. The purpose of this Schedule is to provide full transparency, enabling the Participant to understand precisely what services they will receive, how they will be delivered, and what financial commitments are involved.



Additional expenses that fall outside the scope of NDIS funding, such as meals, tickets, personal care products, or transport unrelated to support provision, remain the responsibility of the Participant and will not be covered under this Agreement.

Nominated Payment Type

The method of payment for supports under this Service Agreement will be determined by the Participant's NDIS Plan management arrangement. The Provider will apply the relevant pathway as follows:

- **Agency-Managed:** Where the Participant's Plan is managed directly by the National Disability Insurance Agency (NDIA), the Provider will make claims for payment directly from the NDIS Portal upon delivery of services. The Participant will not be required to make direct payments to the Provider, provided that the supports are included in the Participant's current NDIS Plan.
- **Plan-Managed:** Where the Participant's Plan is managed by a registered NDIS Plan Management Provider, the Provider will issue invoices directly to the nominated Plan Manager. The Plan Manager will claim the cost of supports from the NDIS and pay the Provider in line with the NDIS Pricing Arrangements.
- **Self-Managed:** Where the Participant, or their authorised nominee, is responsible for managing their NDIS funds, the Provider will issue invoices directly to the Participant or nominee. The Participant or nominee agrees to make full payment within fourteen (14) days of invoice and may subsequently claim reimbursement from the NDIS.

The Participant further agrees to notify the Provider immediately if their Plan management type changes during the life of this Agreement, so that arrangements can be updated to reflect the correct funding pathway.

Payments and Cost of Services

The cost of services delivered under this Agreement will align directly with the supports and services set out in the Schedule of Supports and with the *NDIS Pricing Arrangements in effect at the time of service*. The Provider confirms that no additional charges will be imposed on the basis of the Participant's vulnerability, complexity, or support needs. All invoices will be transparent, itemised, and provided in a timely manner.

Where services are plan-managed, the Provider will submit claims directly to the nominated Plan Manager. Where services are self-managed, the Participant agrees to pay invoices within fourteen (14) days of receipt.

The Participant or their representative remains responsible for the cost of services that fall outside their NDIS Plan, and the Provider reserves the right to suspend or cease services where there is persistent non-payment, after providing reasonable notice and attempting to resolve the matter.

Responsibilities of the Provider

- The Provider undertakes to deliver services in a manner that is professional, transparent, and participant-centred.
- The Provider will ensure that all staff engaged in service delivery are appropriately qualified, trained, supervised, and cleared under NDIS Worker Screening requirements.



- Services will be provided in accordance with the NDIS Code of Conduct and will respect the dignity, privacy, and human rights of the Participant.
- The Provider agrees to maintain open communication, to consult with the Participant regarding decisions that affect them, and to review the supports delivered on a regular basis to ensure they remain responsive to the Participant's evolving needs.
- The Provider will also maintain comprehensive policies and procedures covering risk management, complaints handling, incident management, and emergency preparedness.
- The Provider guarantees that all services will be free from abuse, neglect, exploitation, or discrimination and that any breaches will be dealt with promptly and in compliance with NDIS Commission requirements.

Responsibilities of the Participant / Representative

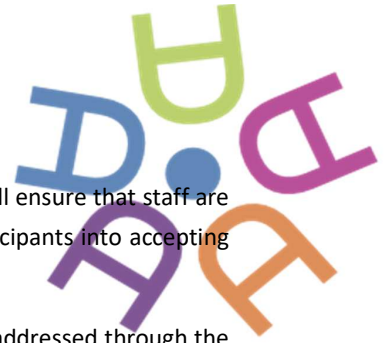
- The Participant, or their nominated representative, agrees to actively engage with the Provider to ensure that supports can be delivered effectively.
- The Participant undertakes to provide accurate and up-to-date information regarding their needs, goals, and personal circumstances, and to promptly notify the Provider of any changes to their NDIS Plan, funding arrangements, or health and living situation.
- The Participant agrees to respect the rights of Provider staff, to maintain a safe environment for service delivery, and to provide reasonable notice for cancellations or changes to appointments.
- The Participant further agrees to pay any invoices promptly where they are self-managing their funding, and to take responsibility for the cost of supports that are not covered under their NDIS Plan.
- By signing this Agreement, the Participant also confirms their commitment to communicate concerns or complaints openly, to participate in reviews of their supports, and to work constructively with the Provider in pursuit of their personal goals.

Australian Consumer Law

This Agreement operates in full compliance with the Competition and Consumer Act 2010 (Australian Consumer Law). The Provider guarantees that all services will be delivered with due care and skill, will be fit for their intended purpose, and will be delivered within reasonable timeframes. The Participant has the right to remedies under consumer law if services fail to meet these guarantees, which may include a resupply of services, a refund, or other corrective action. The Provider further confirms that it will not engage in misleading or deceptive conduct, will not accept payment for services it cannot reasonably supply, and will not impose any unfair terms or conditions on the Participant. All pricing, terms, and service descriptions will be provided clearly and in writing, and financial records will be made available to the Participant or their representative upon request.

NDIS Code of Conduct

The Provider acknowledges and accepts its obligation to comply with the NDIS Code of Conduct. This requires the Provider and its staff to act with honesty, integrity, and transparency, to deliver supports in a safe and competent manner, and to respect the privacy and dignity of Participants at all times.



The Provider will not make false claims regarding its capacity to deliver services, will ensure that staff are appropriately qualified for the supports they provide, and will never pressure Participants into accepting services or products that are unnecessary or inappropriate.

Any breach of the Code of Conduct will be treated as a serious matter and will be addressed through the Provider's disciplinary and compliance processes, as well as being reported to the NDIS Commission if required.

Critical Incident Management

The Provider is committed to ensuring the safety of the Participant at all times and will manage all incidents in accordance with the NDIS (Incident Management and Reportable Incident) Rules 2018. In the event of a critical incident, the Provider will take immediate action to protect the Participant, notify relevant authorities where required, and provide ongoing support to the Participant throughout the resolution process.

All incidents will be recorded, investigated, and reviewed to ensure appropriate responses and to identify opportunities for improvement. Reportable incidents, such as allegations of abuse, neglect, exploitation, or serious injury, will be notified to the NDIS Commission in accordance with legislative requirements. The Participant will be informed of any incident involving them and where appropriate consulted in decisions about follow-up actions.

Emergency and Disaster Management

The Provider recognises its duty of care to ensure continuity of essential supports in the event of an emergency or disaster, such as natural disasters, pandemics, or other unforeseen events. In such circumstances, the Provider may need to adjust the method or timing of supports, reallocate staff, or engage the services of partner organisations to ensure the Participant continues to receive vital care.

If the Participant's safety cannot be confirmed, the Provider reserves the right to contact police or emergency services to conduct a welfare check. Where relocation is necessary, the Provider will make reasonable efforts to support the Participant in accessing alternative accommodation and will continue to provide supports at the new location where practicable.

The Provider will maintain regular communication with the Participant or their representative throughout the emergency and will ensure that all actions taken are proportionate, lawful, and directed towards ensuring the Participant's safety and wellbeing.

Cancellations

The Participant agrees to provide the Provider with at least 7 Days' notice of any cancellation. This allows the Provider to reallocate staff and manage service schedules effectively. Where insufficient notice is provided and the Provider is unable to redeploy the allocated staff member, the Participant may be charged the full cost of the cancelled support in line with the NDIS Pricing Arrangements. The Provider also agrees to provide as much notice as reasonably possible if they must cancel or reschedule services, and to work with the Participant to minimise disruption to their supports.



Changes to this Agreement

This Agreement may be varied where changes are required to the supports, methods of delivery, or financial arrangements. Any such changes must be discussed and agreed in good faith by both parties. No variation will take effect unless it is documented in writing, signed, and dated by both the Participant (or their representative) and the Provider.

Ending this Agreement

Either party may terminate this Agreement by providing written notice. The notice period will be two (2) weeks for community supports and one (1) month for Supported Independent Living (SIL) services. Immediate termination may occur if there is serious misconduct, non-payment of services, or an imminent risk to health and safety. Where services are ended without the required notice period, the Provider reserves the right to claim payment for the period in line with NDIS Pricing Arrangements, including SIL exit provisions where applicable. The parties agree that termination will always be managed respectfully, with consideration given to the Participant's need for continuity of care.

Feedback and Complaints

The Provider values feedback as a vital component of continuous improvement and encourages the Participant to share their views on the services provided. Complaints can be raised verbally, in writing, or anonymously, and will be acknowledged promptly. All complaints will be investigated thoroughly and outcomes communicated clearly to the Participant, to the extent required, whilst protecting individual privacy.

Where the Participant is dissatisfied with the Provider's handling of their complaint, they may escalate the matter to the NDIS Quality and Safeguards Commission by calling 1800 035 544 or by visiting www.ndis.gov.au.

The Provider guarantees that no Participant will ever be disadvantaged for raising feedback or making a complaint.

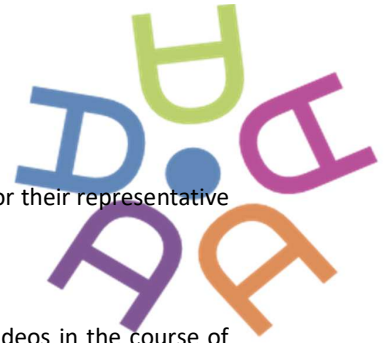
Goods and Services Tax (GST)

Supports delivered under this Agreement that are considered reasonable and necessary supports under the Participant's NDIS Plan and may be GST free. Where GST applies, the Provider will ensure that all invoices are GST-inclusive and clearly itemised. The Participant agrees to pay any GST applicable to the supports they receive. Both parties acknowledge their obligations under the Australian Taxation Office requirements, and any disputes regarding GST will be resolved in accordance with relevant tax laws and NDIS Pricing Arrangements.

Information Storage

The Provider will collect, use, and store the Participant's personal information solely for the purposes of delivering supports under this Agreement. All information will be handled in compliance with the Privacy Act 1988 and the Australian Privacy Principles. Data may be stored in secure electronic systems, with access limited strictly to authorised staff. The Provider will take all reasonable steps to protect information against unauthorised access, loss, or misuse.

The Participant has the right to request access to their personal records, and the Provider will facilitate such access promptly, provided that it is safe to do so. Where releasing the full information may pose a risk to the safety of the Participant, staff, or others, the Provider reserves the right to share only that information which can be reasonably provided without creating risk. In such cases, the Provider will clearly



explain the limitations of what can be disclosed and will work with the Participant or their representative to provide as much safe access to information as possible.

Photography and Picture Consent

The Provider may request consent from the Participant to take photographs or videos in the course of providing supports. Such images may be used for documentation of care, communication with allied health professionals, or inclusion in behaviour support planning. The Participant may also be asked to consent to the use of images for promotional or marketing purposes. Consent is entirely voluntary and can be withdrawn at any time in writing. The Provider will respect the Participant's decision and will ensure that no photographs or videos are taken or shared without explicit consent.

- I consent to support workers using their phone or other personal device to take photos or videos of me
☐ Yes ☒ No
- I consent to support workers using their phone or other personal device to take images of my home or property
☐ Yes ☒ No
- I consent to Ablepoint Australia Service or delegate using a Company device to take photos or videos of me
☐ Yes ☒ No
- I consent to photos or videos being taken that may be shared with other Allied health services
☐ Yes ☒ No
- These may be included for the purposes of behaviour support when I am displaying behaviours of concern
☐ Yes ☒ No
- I consent to videos or Photos being taken of me and shared for the purposes of marketing material
☐ Yes ☒ No
- ☐ I would like to be contacted per individual circumstance

Audit and Consent for Information

The Provider may be subject to external audits conducted by independent auditors authorised by the NDIS Quality and Safeguards Commission. These audits are designed to ensure compliance with NDIS Standards and to safeguard participants. The Participant may consent to their information being accessed in full, in de-identified form, or not at all. Where consent is provided, the Provider will ensure that information is used only for the purposes of the audit and handled with the utmost confidentiality. Where consent is withheld, the Provider will respect that decision, subject only to legal obligations requiring disclosure.

- ☐ I Consent to guardian being contacted to speak to the auditor on my behalf.



Consent to Release Information

The Participant may nominate specific individuals, family members, representatives, or organisations to whom their information may be released for the purpose of coordinating supports. This consent will be recorded formally and may specify the type of information to be shared. The Participant retains the right to withdraw consent at any time by providing notice in writing. The Provider may release information without consent only where required by law, such as mandatory reporting obligations in cases of suspected harm, abuse, or serious risk the release of information is required to reported when the Participant makes the provider aware of:

- The knowledge or intention to commit a crime
- The knowledge or suspicion of a child or vulnerable person at risk
- The Knowledge or Intention to seriously harm yourself or others
- NDIS Reportable Incidents
- Other incident or events that could lead to yourself or another person being harmed.

Signatories

The participant confirms they have been offered a copy of this Service Agreement once completed:

☐ Yes ☐ No

The participant advised that they **DO NOT** wish to receive a copy of this Service Agreement.

☐ Yes ☐ No

If the above answer is yes, the reason/s why the participant does not want a copy of the Service Agreement to follow:

The parties agree to the terms and conditions of this Service Agreement.

This Agreement has been explained verbally to me or support has been provided to ensure that I understand all the items within this agreement: ☐ Yes ☐ No

Richard MCLEAN (AKA: Barran DODGER)

**Signature of Participant/Participant
Representative**

Name of Participant/Participant's
Representative

Date 02/03/26

Richa KC

Richa KC



Signature of authorised person from
provider

Name of authorised person from provider

Date 02/03/26

Signature second person where Participant
or service has declined to sign

Name and delegation of Person

Reason that form has not been signed

Date 02/03/26



SCHEDULE OF SUPPORT

Support Line Number	Description of Support	Unit of support	Rate Per Unit	Weekly Hours of Support	How will the Support be provided
01_011_0107_1_1	Assistance With Self-Care Activities - Standard - Weekday Daytime	Hour	\$70.23	15	1:1
01_015_0107_1_1	Assistance With Self-Care Activities - Standard - Weekday Evening	Hour	\$77.38	15	1:1
01_013_0107_1_1	Assistance With Self-Care Activities - Standard - Saturday	Hour	\$98.83	6	1:1
01_014_0107_1_1	Assistance With Self-Care Activities - Standard - Sunday	Hour	\$127.43	6	1:1
01_012_0107_1_1	Assistance With Self-Care Activities - Standard - Public Holiday	Hour	\$156.03	6 (per day)	1:1
04_104_0125_6_1	Access Community Social and Rec Activ - Standard - Weekday Daytime	Hour	\$70.23	10	1:1
04_105_0125_6_1	Access Community Social and Rec Activ - Standard - Saturday	Hour	\$98.83	2	1:1
04_106_0125_6_1	Access Community Social and Rec Activ - Standard - Public Holiday	Hour	\$127.43	2	1:1
04_102_0125_6_1	Access Community Social and Rec Activ - Standard - Public Holiday	Hour	\$156.03	2 (per day)	1:1
Funding (Please tick)					
☐ Agency Managed ☐ Self-Managed ☒ Plan Managed (please complete the information below)					
Plan Manager Details					
Client Name	Richard MCLEAN (AKA: Barran DODGER)				
NDIS No./DOB	430938559 / 08 April 1973				
Plan Manager Name	South West Plan Managers				
Phone Number	0861821781				
Email Address	invoices@swplanmanagers.com.au				